

IN THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

PRESENT:

Mr. Justice Yahya Afridi, CJ
Mr. Justice Shahid Bilal Hassan

Criminal Petitions No.921, 922 and 938 of 2023

(Against the judgment dated 03.08.2023 passed by the Islamabad High Court, Islamabad in Criminal Revision No. 108 of 2023)

Imran Ahmad Khan Niazi (in all cases)

...Petitioners

Versus

District Election Commissioner, Islamabad and another (in all cases)

...Respondents

For the Petitioners: Mr. Muhammad Latif Khan Khosa, Sr. ASC
(in all cases)

On Notice: Mr. Mansoor Usman Awan, Attorney General
for Pakistan

On Court's Call: Barrister Salman Safdar, ASC
(as amicus curiae/Friend of the Court)

For the Respondents: Mr. Muhammad Jaffar, A.D. Law, ECP
Mr. Waqas Malik, Director Research, ECP
Mr. Zia-ur-Rehman, District E.C.

Date of Hearing: 12.02.2026

ORDER

Yahya Afridi C.J.: The present petitions arise out of three related proceedings emanating from the same criminal trial, instituted on a complaint filed by the Election Commission of Pakistan through the District Election Commissioner, Islamabad. Although the petitions assail different interlocutory and procedural orders, they stem from a common factual and procedural background. For clarity and context, the background of each petition is set out hereunder.

2. **Cr.P.L.A No. 921 of 2023:** This petition arises out of an application filed by the petitioner before the learned trial court, challenging its jurisdiction on the grounds that the complaint was barred by limitation and that the complainant was not duly authorised to institute the proceedings. The said application was dismissed by the learned trial court vide order dated 08.07.2023. Aggrieved thereby, the petitioner filed Criminal Revision No. 108 of 2023 before the learned Islamabad High Court ("**High Court**"), which was allowed, and the matter was remanded to the trial court for decision afresh. The present petition has been filed against the said remand order.

3. Upon remand, however, the learned trial court reiterated its earlier view and ultimately passed a final judgment dated 05.08.2023, against which an appeal has been filed by the petitioner and is stated to be presently pending before the High Court.

4. **Cr.P.L.A No. 922 of 2023:** This petition arises from the dismissal of an application filed by the petitioner before the learned trial court seeking the summoning of certain witnesses. The said application was dismissed vide order dated 02.08.2023. Aggrieved thereby, the petitioner assailed the said order by filing Criminal Revision No. 119 of 2023 before the High Court and also moved a miscellaneous application seeking suspension of the trial proceedings. Although notice was issued on the said miscellaneous application by the High Court, no stay of the trial proceedings was granted. Treating the issuance of notice only as a refusal to grant stay, the present petition has been filed to challenge the said refusal.

5. Meanwhile, the learned trial court proceeded to conclude the trial and passed final judgment dated 05.08.2023, which has been assailed by the petitioner before the High Court by way of appeal.

6. **Cr.P.L.A No. 938 of 2023:** This petition arises from the dismissal of Criminal Miscellaneous (Transfer) Application No. 662 of 2023 filed by the petitioner before the High Court, whereby transfer of the aforesaid complaint case pending adjudication before one trial court to another was sought. Subsequent to the dismissal of the said transfer application, the learned trial court passed final judgment dated 05.08.2023. The said judgment has been challenged by the petitioner by way of an appeal, which is presently pending before the High Court.

7. It is evident from the above narration of the factual background of each petition that the first two petitions are directed against interlocutory orders passed during the course of the trial, the proceedings of which have since culminated in a final judgment. The orders impugned in the first two petitions have merged into the final judgment of the trial court dated 05.08.2023, which has already been assailed by the petitioner in appeal before the High Court. Consequently, these two petitions have become infructuous. Similarly, the order challenged in the third petition, concerning the refusal to transfer the case, has also become infructuous by virtue of the final judgment passed by that court, from which the transfer was sought.

8. When confronted with the above, the learned counsel for the petitioner drew attention to the directions issued by a three-member Bench of this Court in these petitions vide orders dated 23.08.2023 and 24.08.2023. It was submitted, firstly, that the matter was directed to remain pending until the decision on the petitioner's appeal by the High Court, and, accordingly, the learned counsel contended that the present proceedings ought to remain pending until the High Court renders its decision on the said appeal. Secondly, it was pointed out that the Attorney-

General had been directed to submit a report regarding the petitioner's living conditions in jail for perusal by the members of the Bench in Chambers; however, the said report has not yet been filed.

9. Accordingly, before proceeding further, we deemed it appropriate to first ensure compliance with the directions previously issued by the three-member Bench of this Court in these petitions to the learned Attorney-General for Pakistan, and thereafter consider the judicial closure of the matter at hand. The learned Attorney-General, upon notice, appeared before the Court and refuted the statement of the learned counsel for the petitioner regarding the non-submission of the report, asserting that the same had already been submitted. In this regard, the report submitted for perusal by the members of the Bench in Chambers was placed on record through **CMA No. 403/2026**.

10. However, the record is silent as to submission of any such report in Chambers, and judicial determination thereon. Furthermore, as the submitted report pertained to the year 2023, when the petitioner was confined in District Jail, Attock, and in view of the passage of considerable time since then, as well as the subsequent change in the place of confinement, obtaining a fresh report regarding the petitioner's present living conditions in jail was considered appropriate. Consequently, the Superintendent, Central Prison, Rawalpindi was directed to submit an updated report. Further, Barrister Salman Safdar, ASC, was appointed as "Friend of the Court" (*amicus curiae*) to independently visit the petitioner and submit a separate report, thereby assisting the Court in obtaining a clear and complete picture of the petitioner's current living conditions in jail.

11. Both fresh reports—one submitted by the Superintendent, Central Prison, Rawalpindi, and the other by the learned *amicus curiae*—have been placed before the Court. Before advertng to their contents, the Court records its appreciation for Barrister Salman Safdar, ASC, Friend of the Court (*amicus curiae*), for discharging the sensitive responsibility entrusted to him with diligence and care. The Court also acknowledges the cooperation of the Attorney-General for Pakistan, whose facilitation enabled the learned Friend of the Court (*amicus curiae*) to discharge his duties effectively. Similarly, the report submitted by the Superintendent, Central Prison, Rawalpindi, has been of considerable assistance, and his prompt compliance with the Court's directions is duly commended.

12. Having carefully perused both reports in detail, it is observed that their general contents and the overall picture emerging therefrom are largely consistent. It appears that the petitioner's living conditions in jail do not presently exhibit any perverse aspects. The assessment regarding the daily routine, food, condition of the confinement cell, regular basic medical examinations, and the safety and security of the petitioner within the jail premises, as provided in both reports, is, in material respects, positive and consistent. In this context, it is appropriate to reproduce Paragraph 20 of the report submitted by the learned "Friend of the Court" (*amicus curiae*), which states:

"That based on the personal inspection and interview conducted with the Petitioner, the undersigned concludes that the Petitioner has expressed satisfaction regarding his safety and security within the cell-block (compound), as well as contentment with his living conditions, amenities, and food provisions within the jail premises. He had reiterated that his wants remain limited and reasonable, fully acknowledging the constraints of incarceration."

However, paragraph 21(i) of the said report highlights serious concerns regarding the deteriorating optical condition of the petitioner. The learned

Attorney-General for Pakistan acknowledged the urgency of the matter and assured the Court that all necessary measures shall be taken to ensure proper care of the petitioner's health in accordance with law. He further assured that a medical examination by a team of expert ophthalmologists shall be conducted at the earliest, and in any event, before 16 February 2026.

13. The report submitted by the learned "Friend of the Court" (*amicus curiae*) also recommends that the petitioner be permitted to communicate with his sons residing in the United Kingdom, namely Mr. Sulaiman Khan and Mr. Kasim Khan, in accordance with law and subject to reasonable security safeguards. This recommendation was positively received by the learned Attorney-General, who assured the Court that the necessary arrangements shall be made in accordance with law.

14. Additionally, the learned "Friend of the Court" (*amicus curiae*) reported that the petitioner requested certain books, highlighting their relevance for preserving his overall mental well-being. The learned Attorney-General also agreed to facilitate the supply of the requested books to the petitioner.

15. Thus, as evident from the above, the petitioner has generally expressed satisfaction with the prevailing conditions of his confinement and has not raised any concerns necessitating accommodations beyond the existing level of care. Both reports corroborate this finding and are further reinforced by the assurances provided by the learned Attorney-General for Pakistan. Accordingly, the concerns of the Court regarding the petitioner's living conditions in jail, as reflected in the order dated 24.08.2023, have been addressed, and that order stands complied with.

16. Turning to the merits of the petitions, we reiterate our view that the

present petitions have become infructuous. The orders impugned in the first two petitions have merged into the final judgment of the trial court dated 05.08.2023, which has already been challenged by the petitioner in appeal before the High Court. Similarly, the third petition, concerning the refusal to transfer the case, has also become infructuous by virtue of the final judgment passed by that court, from which the transfer was sought. The petitioner's substantive challenge to that final judgment, including the alleged irregularities or illegalities during the trial proceedings, is presently *sub judice* before the learned High Court in its appellate jurisdiction. Accordingly, the petitioner retains the right to agitate all his grievances before the appropriate judicial forum, which, in the present circumstances, is the High Court—the appellate court where his appeal against the trial court's final judgment dated 05.08.2023 remains pending adjudication.

17. However, in due deference to the earlier orders passed by a three-member Bench of this Court dated 23.08.2023 and 24.08.2023, wherein it was observed that the Court would await the decision of the High Court before proceeding further in these petitions, we adjourn the present petitions *sine die*, to be taken up after the decision of the petitioner's appeal before the High Court against the trial court's judgment dated 05.08.2023. In the meantime, if the petitioner has any grievance, the appropriate course will be to first approach the High Court, where his appeal is pending adjudication.

Chief Justice

Judge

Islamabad
12.02.2026
Not approved for reporting